

25CV04836 Robert Ottinger v Paul P. Weishaar, et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-10

Motion: Motion to Quash

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Tentative Ruling: Robert Ottinger v Paul P. Weishaar, et al

Case Number

25CV04836

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/10/2026 - 10:00

Nature of Proceedings

Motion to Quash

Tentative Ruling

For Plaintiff Robert Ottinger: Robert W. Ottinger, Jaylen Shriver, Jacqueling Alarcon, The Ottinger Firm, P.C.

For Defendants Paul P. Weishaar and PPW Motorcars, LLC: Andrew Wyatt, Wyatt Law

RULING

The motion of Defendants to quash service of summons is granted in part. The motion is construed as a motion to stay or to dismiss for inconvenient forum and is granted. This action is stayed pending the filing or other disposition of an action in Missouri.

The Court sets an order to show cause re dismissal as to the status of an action in Missouri for 8/12/26 at 8:30am; if the dismissal is filed no appearance is required.

Counsel for Defendants, Andrew Wyatt of Wyatt Law, is ordered to appear at the hearing of this motion (Zoom appearance is acceptable) and to provide a further explanation as discussed herein.

Background

On August 5, 2025, Plaintiff Robert Ottinger filed his original complaint in this action against Defendants Paul P. Weishaar and PPW Motorcars, LLC (PPW) asserting five causes of action: (1) fraud; (2) conversion; (3) quantum meruit; (4) promissory fraud; and (5) negligent misrepresentation. All of these causes of action arise out of the sale of a vehicle. (Complaint, ¶¶ 1, 10.)

Proof of service of the summons and complaint were filed on October 21, 2025. The proofs of service show personal service on each Defendant in St. Louis, Missouri.

Defendants' respective defaults were entered on December 5, 2025. On December 29, 2025, Defendants filed their motion to set aside the defaults. On March 4, 2026, the Court granted the motion and set aside the defaults.

On April 2, 2026, Defendants filed this motion to quash service of summons with a noticed hearing date of May 6, 2026.

In advance of the May 6, 2026, hearing date, the Court issued a tentative ruling which (1) granted the then-unopposed motion, and (2) ordered counsel for Defendants to explain misrepresentations made in the moving papers.

At the hearing on May 6, 2026, counsel for Plaintiff appeared and reported that he had not been served with the motion. In view of this assertion, the Court continued the hearing on the matter, including the Court's issue regarding the misrepresentations to this hearing date of June 10.

On May 7, 2026, Defendants filed a proof of service on Plaintiff's counsel. The Court notes that this proof of service states only that the proof of service itself was served on counsel; the proof of service does not indicate that any other documents were served. Consequently, this proof of service does not provide any relevant information regarding service of the underlying motion or notice of the Court's May 6 ruling.

On May 20, 2026, Plaintiff filed opposition to the motion to quash.

On June 3, 2026, Defendants filed a reply to the opposition. Also on June 3, counsel for Defendants, attorney Andrew Wyatt, filed a declaration responding to the Court's request for an explanation regarding the misrepresentation.

Analysis

(1) Motion to Quash

Defendants' motion is styled as a motion to quash service of summons pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1) on the grounds that venue in this action is improper and that the parties expressly agreed to litigate disputes in Missouri.

"A Defendant, on or before the last day of his or her time to plead or within any further time that the Court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes:

"(1) To quash service of summons on the ground of lack of jurisdiction of the Court over him or her.

"(2) To stay or dismiss the action on the ground of inconvenient forum." (Code Civ. Proc., § 418.10, subd. (a)(1), (2).)

(A) Styling of Motion

In its May 6 tentative ruling, the Court noted that this motion is improperly styled as a motion to quash service of summons. As quoted above, a motion under section 418.10, subdivision (a)(1) is to quash on the grounds of a lack of jurisdiction of the Court over the person of the Defendants.

Personal jurisdiction is acquired by effective service of process and a demonstration of minimum contacts. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1229.) The existence of a forum selection agreement does not deprive a Court of personal jurisdiction. Defendants make no argument and present no facts to show that this Court does not have personal jurisdiction over the Defendants.

In opposition, Plaintiff argues that the Court has personal jurisdiction over the Defendants and that the motion should be denied because the motion is procedurally defective as improperly styled.

In reply, Defendants expressly do not contend that this Court lacks personal jurisdiction over them. (Reply, at p. 4.) Instead, Defendants seek to enforce the forum selection agreement, notwithstanding how the motion is styled. (Reply, at p. 2.)

"The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words." (City and County of San Francisco v. Muller (1960) 177 Cal.App.2d 600, 603.) To the extent that Defendants' motion misdescribed the motion, the Court's May 6 tentative addressed the legal issue raised by the motion. When Plaintiff appeared and reported not having been served with the motion, the Court gave Plaintiff the opportunity to file full opposition. Plaintiff has done so and has addressed the specific issue of enforcement of the forum selection agreement. The Court will therefore address the merits of the motion seeking to stay or to dismiss this action on the grounds of the forum selection agreement.

(B) Forum Selection Agreement

" 'While ... parties may not deprive Courts of their jurisdiction over causes by private agreement [citation], it is readily apparent that Courts possess discretion to decline to exercise jurisdiction in recognition of the parties' free and voluntary choice of a different forum.... [¶] No satisfying reason of public policy has been suggested why enforcement should be denied a forum selection clause appearing in a contract entered into freely and voluntarily by parties who have negotiated at arm's length.... [F]orum selection clauses are valid and may be given effect, in the Court's discretion and in the absence of a showing that enforcement of such a clause would be unreasonable.' [Citation.] 'Given the importance of forum selection clauses, both the United States Supreme Court and the California Supreme Court have placed a heavy burden on a Plaintiff seeking to defeat such a clause, requiring it to demonstrate that enforcement of the clause would be unreasonable under the circumstances of the case.' [Citation.]" (Miller-Leigh LLC v. Henson (2007) 152 Cal.App.4th 1143, 1149.)

The complaint alleges that the parties entered into an agreement for the purchase of a vehicle. (Complaint, ¶¶ 1, 10.) Defendants present evidence of the terms of the agreement, including the following:

"Any dispute arising from this transaction are to be heard in St. Louis County, Missouri." (Weishaar decl., ¶ 36 & exhibit A, p. 15.)

This language appears in an "AS-IS Disclosure" and apparently has Plaintiff's separate signature immediately underneath.

In opposition, Plaintiff provides the following background:

"On or about September 3, 2024, I entered into an agreement with Defendants for the purchase of a 1972 Mercedes-Benz 350SL for the sum of \$42,000. I wired \$41,000 to Defendants on June 3, 2024 and paid a \$1,000 down payment on June 1, 2024. The written agreement included a Buyers Order, including an 'As-Is' Disclosure." (Ottinger decl., ¶ 5.) "I am aware that the As-Is Disclosure contains a clause stating: 'Any dispute arising from this transaction are to be heard in St. Louis County, Missouri.'" (Id., ¶ 6.)

"Defendants advertised the vehicle on PPW's website with numerous representations portraying it in pristine condition, including statements such as 'Just Serviced and Ready to be Enjoyed Today!', 'This magnificent motorcar is incredibly correct, down to the cracked free dash!', 'we just performed a Major Service to ensure this magnificent motor car is ready to be enjoyed by the next owner!', 'Setting this vehicle apart from all others ... is the wonderful condition,' 'Incredible Investment Potential,' and 'One of the Finest Examples We Have Had to Date!'. I reasonably relied on these representations in making my decision to purchase the vehicle." (Ottinger decl., ¶ 7.)

"The actual condition of the vehicle was entirely at odds with Defendants'

representations. When I first attempted to start the vehicle after being delivered to my residence in Santa Barbara County, California, it caught on fire, filling the cabin with black smoke. It became immediately obvious that the vehicle's actual condition had been entirely mischaracterized by the advertisement and the promises of the seller. The interior, exterior, and mechanical integrity of the car was entirely at end with the representations made by the Defendants and the vehicle was entirely undriveable." (Ottinger decl., ¶ 8.)

The vehicle was shipped and delivered to Ottinger in Santa Barbara County. (Ottinger decl., ¶ 13.) The vehicle is now physically in Santa Barbara County. (Id., ¶¶ 13, 14.)

Ottinger had the vehicle sent to a specialist in Santa Barbara for evaluation, which specialist advised that the car was severely damaged in an accident. (Ottinger decl., ¶ 9.) The vehicle was then examined by an expert in Santa Barbara, who made additional adverse findings about the condition of the vehicle. (Id., ¶¶ 10-11.)

Ottinger argues that the forum selection agreement should not be enforced in this motion because it is a permissive rather than a mandatory clause and because the clause does not cover tort claims unrelated to the interpretation of the contract. (Ottinger decl., ¶ 6.)

" 'In a contract dispute in which the parties' agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive. A mandatory clause ordinarily is "given effect without any analysis of convenience; the only question is whether enforcement of the clause would be unreasonable." [Citation.] But, if "the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusively in a particular forum, then the traditional forum non conveniens analysis applies. [Citation.]" [Citation.]" [Citation.]" (Korman v. Princess Cruise Lines, Ltd. (2019) 32 Cal.App.5th 206, 215.)

The language of the forum selection agreement does not use either the words "shall" or "may," which would ordinarily provide a clear statement of whether the provision is mandatory or permissive. However, the language here—"dispute ... are to be heard"—can only meaningfully be understood as mandatory. Hearing a dispute in Santa Barbara, California, plainly

contradicts the intention expressed in this language.

This construction is consistent with the context of the provision. The transaction is the sale of a unique vehicle by the seller of unique vehicles located in Missouri. The evidence presented shows that the vehicle was sold from Missouri and shipped to California. The forum selection agreement exists as part of a four-sentence second paragraph of the “AS-IS Disclosure” stating that it is the responsibility of the buyer to have fully inspected the vehicle. This provision was separately acknowledged by Plaintiff by his signature. Whether or not that provision is enforceable as to liability, it provides the context of a vehicle that would necessarily have to be inspected in Missouri, where it was located at the time of the transaction. A mandatory forum selection of Missouri would be well within the reasonable expectations of a buyer of a unique vehicle under these circumstances.

“ ‘When a case involves a mandatory forum selection clause, it will usually be given effect unless it is unfair or unreasonable. [Citation.]’ [Citation.]” (Korman v. Princess Cruise Lines, Ltd., supra, 32 Cal.App.5th at p. 216.)

“In the context of forum selection clauses, enforcement is considered unreasonable where ‘the forum selected would be unavailable or unable to accomplish substantial justice’ or there is no ‘rational basis’ for the selected forum.” (Drulias v. 1st Century Bancshares, Inc. (2018) 30 Cal.App.5th 696, 707.) Ottinger has not demonstrated that litigation in Missouri would be unavailable or unable to accomplish substantial justice. There is on its face a rational basis for selection of Missouri as the forum for this dispute.

Ottinger argues that enforcement would be unreasonable because the provision does not apply to tort claims and witnesses are located in California. The agreement, by its terms, applies to any dispute arising from the transaction. Plaintiff’s tort claims directly arise out of the transaction. (See, e.g., Complaint, ¶ 29 [“Defendant’s deception caused Plaintiff to purchase the car from Defendant”].)

With respect to the location of witnesses, convenience of witnesses is only an issue with a mandatory forum selection agreement where it would be unreasonable or unfair to enforce the agreement. Here, Plaintiff has not shown that convenience of witnesses rises to the level of unreasonableness or unfairness. The transaction at issue continued across two places: Missouri and California. While California has an interest in providing a forum for its residents, California also has a strong interest in giving effect to contractual agreements as to forum. Litigation in Missouri is not unreasonable or unfair.

Accordingly, based upon the evidence and arguments of the parties, the Court concludes that the forum selection agreement is enforceable and is to be enforced. The motion will be granted to stay this action. (Dismissal is improper at this time in the event that Missouri actually proves to be unavailable. The Court will set a hearing to address when this action may be dismissed.)

(2) Misrepresentations in Moving Papers

In its May 6 tentative ruling, the Court noted a concerning feature of the motion. On page 7 of the motion, counsel states (emphasis in original):

“Lastly, the As-Is Disclosure contains a Missouri venue provision that states:

‘Any disputes arising under or related to this Agreement shall be brought exclusively in the state or federal Courts located in St. Louis County, Missouri, and the parties hereby consent to such jurisdiction and venue.’” (See Declaration of Paul P. Weishaar and Exhibit A)”

As quoted above, both the declaration of Paul Weishaar and the attached exhibit A contain language that is substantially different from that which is represented to the Court by counsel for Defendants in the memorandum in support of the motion.

Although the agreement does contain a forum selection provision using weaker language, the above language in the memorandum misrepresents the operative language of the agreement and does so with emphasis on the misrepresented terms.

The May 6 tentative stated that the Court required an explanation.

On June 3, 2026, attorney Andrew W. Wyatt filed a declaration addressing the Court's concerns. In this declaration Wyatt confirms that he quoted language describing the forum selection agreement that differed from the actual language contained in the parties' agreement attached to the declaration of Paul P. Weishaar. (Wyatt decl., ¶¶ 3, 4.) Wyatt states that the discrepancy was inadvertent and was not intended to mislead the Court. (Wyatt decl., ¶¶ 5, 7.) Wyatt apologizes for this inaccurate quotation. (Wyatt decl., ¶ 8.)

While the Court appreciates Wyatt's acceptance of responsibility for the misstatement of the quotation, the statement that the misquotation was a matter of inadvertence is an incomplete explanation. The Court's principal concern relates to the possible use of generative artificial intelligence (AI) and a failure to review the product of AI.

"A lawyer shall not: [¶] (1) knowingly* make a false statement of fact or law to a tribunal* or fail to correct a false statement of material fact or law previously made to the tribunal* by the lawyer." (Rules Prof. Conduct, rule 3.3(a)(1).) "The lawyer's duty of candor to the tribunal cannot be delegated to AI. The use (or ability) of AI to research, draft, summarize, or generate legal analysis does not diminish the lawyer's personal responsibility for the truthfulness and legal sufficiency of any submission to the Court. In that respect, a lawyer must review all outputs produced using AI tools for accuracy, including but not limited to analysis and citations to authority before submission to the Court, and must independently verify and correct any errors or misleading statements made to the Court, regardless of whether such outputs were generated with or without real-time human direction." (State Bar, Com. on Professional Responsibility & Conduct, Practical Guidance for the Use of Generative Artificial Intelligence in the Practice of Law (May 14, 2026) com. to rules 3.1, 3.3, p. 9.)

It is unclear whether AI was involved in the misstatement here, but there are indications that concern the Court. The misstated contract language is stated as a quotation with a citation that one would not expect if the error were merely a mischaracterization of the actual contract language. Of particular note is the emphasis by bolding and italicizing specific text to be called to the Court's attention. In addition, case citations in the moving papers are followed by asterisks, which is a feature of certain citation checking software used in conjunction with AI generated text. If the misstatement of the contractual text was generated by AI, the Court wants to know that expressly. If the misstatement of the contractual text was created by some other type of error or errors, the Court wants to know that expressly.

Counsel will be required to appear at the hearing on this motion to address this issue.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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